

take alternative precautions such as dry mopping the area and the location/obstruction of the yellow caution sign fell below the standard of care. The Court finds there is genuine dispute of material fact regarding whether BCFT's conduct fell below the standard of care resulting in a breach of duty. "Thus, it is the jury that "has the burden of deciding not only what the facts are but what the unformulated standard is of reasonable conduct" [Citation]. In sum, it is the trier of fact who decides what the facts are and what reasonable care means within those facts." *Coyle v. Historic Mission Inn Corp.*, supra, 24 Cal.App.5<sup>th</sup> 627, 640.

BCFT argues that they had no duty to provide any further mitigation or warning of the hazard because it was open and obvious. "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4<sup>th</sup> 387. "[W]hile the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition." *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5<sup>th</sup> 438. Considering the vestibule area encompasses the entrance of the store, it would have been necessary for customers such as Plaintiff to encounter the condition. The Court finds BCFT's defense that the open and obvious hazard negates their duty of care fails.

Defendant's Motion for Summary Judgment is **DENIED**. Defendant lodged a proposed order that will be modified to reflect the Court's ruling.

\*\*\*\*\*

**9:00 a.m. Review Hearings**

\*\*\*\*\*

**AHERN, DO, ET AL. VS. PARK, RN**

**CASE NUMBER: 25CV-0209394**

This matter is on calendar for review regarding status of arbitration. No status statements have been filed as ordered. Appearances are necessary on today's calendar to provide a status of arbitration.

**CESSNA VS. BROCK**

**CASE NUMBER: 23CV-0202145**

This matter is on calendar for review regarding status of bankruptcy stay. Plaintiff has submitted a Status Conference Statement which indicates that judgment was entered in the bankruptcy proceeding on February 18, 2026 but that the matter has been appealed. This matter is continued to **Tuesday, January 18, 2027, at 9:00 a.m. in Department 64** for review regarding status of bankruptcy stay. Plaintiff shall file a Status Report at least five court days prior to the continued hearing date which addresses the status of the bankruptcy. No appearance is necessary on today's calendar.

**EYE VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.**

**CASE NUMBER: 25CV-0208669**

This matter is on calendar for review regarding status of service, responsive pleadings, and trial setting. Proof of service of summons is now on file for all Defendants. No responsive pleadings have been filed. Plaintiff has submitted a status report stating Plaintiff is in the process of retaining

new counsel and requesting a continuance. Today's review hearing is continued to **Monday, November 16, 2026 at 9:00 a.m. in Department 64** for review regarding status of responsive pleadings and status of counsel for Plaintiff. No appearances are necessary on today's calendar.

**FIRST NATIONAL BANK OF OMAHA VS. DREW**

**CASE NUMBER: 25CVG-00368**

This matter is on calendar for review regarding status of the case. Notice of Conditional Settlement was filed on March 12, 2026 indicating the matter would be dismissed no later than December 12, 2027. The matter is continued to **Monday, January 10, 2028 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on that date per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the hearing. No appearance is necessary on today's calendar.

**FORSLUND, ET AL. VS. CALIFORNIA FAMILY MEDICAL GROUP, ET AL.**

**CASE NUMBER: 25CV-0207381**

This matter is on calendar for trial setting. The Complaint in this matter was filed March 27, 2025. No status statements have been filed. The Court designates this matter as a plan III case and intends to set trial no later than March 23, 2027. Defendants have posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

**IN RE KOSOVAN, ET AL.**

**CASE NUMBER: 26PB-0033398**

This matter is on calendar for confirmation of distribution of funds pursuant to the Court's July 6, 2026 Orders Approving Compromise of Claims for three minors. Confirmation of distribution of funds has been filed. Today's hearing is dropped from calendar, no appearances are necessary. The clerk is directed to close the file.

**PORTFOLIO RECOVERY ASSOCIATES, LLC VS. FOOTE**

**CASE NUMBER: 25CVG-01284**

This matter is on calendar for review regarding status of default. Defendant has been served but has not appeared. No request for entry of default has been filed. No status statement has been filed. An appearance is necessary on today's calendar to provide the Court with a status of the entry of default.

**SANCHEZ VS. ACV AUCTIONS, INC., ET AL.**

**CASE NUMBER: 24CV-0206455**

This matter is on calendar for review regarding status of arbitration. No status statement has been filed as ordered. An appearance is necessary on today's calendar to provide a status of arbitration.

**SMITH VS. BRIDGEWAY INN & SUITES, ET AL.**

**CASE NUMBER: 23CV-0203137**

This matter is on calendar for review regarding status of Plaintiff's successor-in-interest and default judgment. Plaintiff has filed an Amended Complaint pursuant to the Court's July 6, 2026, Order granting Plaintiff's motion to substitute successor in interest. No proof of service of the First Amended Complaint has been filed. No status statement has been filed. An appearance is necessary on today's calendar to provide a status.